



STUDY GUIDE • IEUMUN 2026

House of Representatives

United States House of Representatives

The Privatisation and Commercial Colonisation of Outer Space

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01

About the Committee

Mandate

As per the Constitution, the U.S. House of Representatives makes and passes federal laws. The House is one of Congress's two chambers (the other is the U.S. Senate) and part of the federal government's legislative branch. The number of voting representatives in the House is fixed by law at no more than 435, with representation proportional to the populations of the 50 states.¹

Primary Responsibilities

- **Legislation:** The House's exclusive powers include proposing, debating, and passing bills.
- **Revenue bills:** Originating all bills regarding taxes and raising revenue.
- **Impeachment:** Holding the sole power to impeach federal officers, including the president.
- **Electoral contingency:** Electing the president if no candidate receives a majority of votes in the Electoral College.

History

The House of Representatives was established by Article One of the United States Constitution and first convened in 1789, initially meeting in New York City before the federal government moved to Philadelphia and ultimately to Washington, D.C.² It was

1 U.S. House of Representatives. (n.d.). *The House explained*. House.gov. <https://www.house.gov/the-house-explained>

2 U.S. House of Representatives, Office of the Historian. (n.d.). *History of the House*. House.gov. <https://www.house.gov/the-house-explained/history-of-the-house>

designed as the chamber of Congress most directly accountable to the people, with members chosen by popular vote every two years, in contrast to the Senate (whose members were originally chosen by state legislatures until the Seventeenth Amendment in 1913 provided for their direct election).³

As the nation expanded westward and its population grew, the size of the House increased after successive censuses.⁴ The Reapportionment Act of 1929 (building on the Permanent Apportionment Act) ultimately fixed the number of voting members at 435, where it has remained, with seats reapportioned among the states after each decennial census.⁵

Over time, the franchise broadened considerably: property and other restrictions fell away, the Fifteenth, Nineteenth, Twenty-Fourth, and Twenty-Sixth Amendments and the Voting Rights Act of 1965 progressively extended voting rights across race, sex, and age.⁶ The House has developed an elaborate committee system and body of standing rules to manage an ever-growing legislative workload, and it has played a central historical role through its powers over revenue, impeachment, and the shaping of national policy.⁷

Representatives

Each representative is elected for a two-year term, serving the people of a specific congressional district. Among other duties, they introduce bills and resolutions, offer amendments, and serve on committees. The number of representatives with full voting rights has been 435 since 1913.⁸

The House's composition was established by Article One of the United States Constitution. The House is composed of representatives who, pursuant to the Uniform Congressional District Act, sit in single-member congressional districts allocated to each state based on population as measured by the United States census, provided that each state gets

³ American Academy of Arts and Sciences. (n.d.). *The case for enlarging the House of Representatives*. <https://www.amacad.org/ourcommonpurpose/enlarging-the-house/section/2>

⁴ U.S. House of Representatives, Office of the Historian. (n.d.). *Determining apportionment*. History, Art & Archives, U.S. House of Representatives. <https://history.house.gov/Institution/Apportionment/Determining-Apportionment/>

⁵ U.S. House of Representatives, Office of the Historian. (n.d.). *The Permanent Apportionment Act of 1929*. History, Art & Archives, U.S. House of Representatives. <https://history.house.gov/Historical-Highlights/1901-1950/The-Permanent-Apportionment-Act-of-1929/>

⁶ American Academy of Arts and Sciences. (n.d.). *The case for enlarging the House of Representatives*. <https://www.amacad.org/ourcommonpurpose/enlarging-the-house/section/2>

⁷ U.S. House of Representatives, Office of the Historian. (n.d.). *House committees* [Fact sheet]. History, Art & Archives, U.S. House of Representatives. <https://history.house.gov/Education/Fact-Sheets/Committees-Fact-Sheet2/>

⁸ U.S. House of Representatives. (n.d.). *The House explained*. House.gov. <https://www.house.gov/the-house-explained>

at least one representative.⁹ The number of representatives per state is proportional to population. Special elections may be held in the event of a vacancy.

Since its inception in 1789, all representatives have been directly elected. Although suffrage was initially limited, it gradually widened, particularly after the ratification of the Nineteenth Amendment and the civil rights movement.¹⁰

Committees

The House's standing committees have different legislative jurisdictions. Each considers bills and recommends measures for consideration by the House.¹¹

- They oversee agencies, programmes, and activities within their jurisdictions.
- The Committee of the Whole House is one in which all the members serve.
- Before members are assigned to committees, each committee's size and the proportion of Democrats to Republicans must be decided by the party leaders.
- The total number of committee slots allotted to each party is approximately the same as the ratio between the majority party and the minority party members in the full chamber.

Commissions

Congress has created a wide variety of temporary and permanent commissions to serve as advisory bodies for investigative or policy-related issues, or to carry out administrative, interparliamentary, or commemorative tasks. These are composed of House members, private citizens, or a mix of both. In some cases, the commissions are entities of the House or Congress itself.¹²

Examples: Financial Crisis Inquiry Commission (temporary); Commission on Security and Cooperation in Europe (Helsinki Commission); House Page Board (fixed).

⁹ Congressional Research Service. (n.d.). *Election policy fundamentals: Single-member House districts* (IF12567). Congress.gov. <https://www.congress.gov/crs-product/IF12567>

¹⁰ American Academy of Arts and Sciences. (n.d.). *The case for enlarging the House of Representatives*. <https://www.amacad.org/ourcommonpurpose/enlarging-the-house/section/2>

¹¹ U.S. House of Representatives. (n.d.). *The House explained*. House.gov. <https://www.house.gov/the-house-explained>

¹² U.S. House of Representatives. (n.d.). *The House explained*. House.gov. <https://www.house.gov/the-house-explained>

Special Rules of Procedure

The House of Representatives is governed by standing rules that make certain matters and actions privileged for consideration. On a day-to-day basis, the House can also decide to grant individual bills privileged access to the floor. The standing rules of the House include parliamentary mechanisms to use on bills and resolutions. Which of these will be employed depends on the extent to which Members wish to debate and amend the legislation.

Key Procedural Mechanisms

1 Privileged Status and Floor Access. The House has rules that control what gets debated. Its standing rules determine which matters have priority (“privileged” status). The House can also give a specific bill special access to the floor using parliamentary procedures, allowing it to be considered sooner.¹³

2 Methods of Consideration. The House has several ways to consider legislation, depending on how much debate is desired:

A. **Suspension of the Rules** (most common method; often used for non-controversial bills): Debate is limited; no amendments can be offered from the floor; requires a two-thirds majority of those voting to pass.¹⁴

B. **Unanimous Consent:** Every Member agrees to consider the measure. Usually used for routine or widely supported matters. Any single Member can object and block this procedure.¹⁵

C. **Rules Committee Process:** The House Rules Committee decides how major bills will be debated. This gives House leaders significant control over the legislative process. The House may allow many amendments, allow only certain amendments, or prohibit amendments entirely.¹⁶

1 Committee of the Whole. Many important bills are first debated in the Committee of the Whole, essentially the entire House operating under more flexible rules. Advantages include easier debate procedures, more opportunities for amendments,

¹³ Congressional Research Service. (2019). *The legislative process on the House floor: An introduction* (95-563). Congress.gov. <https://www.congress.gov/crs-product/95-563>

¹⁴ Ibid.

¹⁵ Congressional Research Service. (n.d.). *How measures are brought to the House floor: A brief introduction* (RS20067). Congress.gov. <https://www.congress.gov/crs-product/RS20067>

¹⁶ Congressional Research Service. (2025). *Special rules in the House of Representatives: Purpose and content* (R48308). Congress.gov. <https://www.congress.gov/crs-product/R48308>

and faster consideration of legislation. After debate, the bill returns to the full House for final passage by a simple majority.¹⁷

- 2 Quorum Requirements.** A quorum is the minimum number of Members required to conduct business. To allow business to proceed efficiently, a quorum is generally presumed to exist; Members do not constantly check whether enough Representatives are present. A quorum issue is usually raised only during votes.¹⁸
- 3 Voting Methods.** The House uses several voting methods: Voice Vote (Members verbally say “Aye” or “No”); Division Vote (Members physically indicate their vote, and the votes are counted); Recorded Electronic Vote (if enough Members request it, an official electronic vote is taken, and each Member’s vote is recorded, the most formal method).¹⁹
- 4 Bicameral Agreement.** The U.S. Constitution requires that both the House and the Senate approve identical text of a bill before it may be sent to the President. If the Senate changes a House bill (or vice versa), the differences must be resolved.²⁰
- 5 Resolving Differences Between Chambers.** Two principal methods exist:
- 6 Exchange of Amendments (“Ping-Pong”):** The bill moves back and forth between the House and Senate; each chamber proposes changes until both agree.
- 7 Conference Committee:** A special committee with Members from both chambers negotiates a compromise version. Once an agreement is reached, the House votes on it, the Senate votes on it, and if both approve, the bill goes to the President.

Note: The House can amend its rules unilaterally; it need not consult with either the Senate or the President. The House is free to suspend, waive, or ignore its rules whenever it chooses to do so. By and large, the Speaker or whatever Representative is presiding usually does not enforce the rules at his or her own initiative. Instead, Members must protect their own rights by affirmatively making points of order whenever they believe the rules are about to be violated. House rules include several formal procedures for waiving or suspending certain other rules, and almost any rule can be waived by unanimous consent. Thus, the requirements and restrictions generally apply only if the House chooses to enforce them.

¹⁷ Congressional Research Service. (n.d.). *How measures are brought to the House floor: A brief introduction* (RS20067). Congress.gov. <https://www.congress.gov/crs-product/RS20067>

¹⁸ Congressional Research Service. (n.d.). *Voting and quorum procedures in the House of Representatives* (98-988). Congress.gov. <https://www.congress.gov/crs-product/98-988>

¹⁹ Ibid.

²⁰ Congressional Research Service. (2019). *The legislative process on the House floor: An introduction* (95-563). Congress.gov. <https://www.congress.gov/crs-product/95-563>

02

Topic Introduction

Statement of the Problem

For much of the twentieth century, space exploration was the exclusive domain of sovereign states. The “space age” was defined by government-led programmes, funded by national treasuries, staffed by government scientists and astronauts, and conducted in pursuit of geopolitical prestige and scientific discovery.²¹ The legal framework that emerged during this era, most notably the 1967 Outer Space Treaty, reflected these assumptions: space was to be used for the benefit and in the interests of all countries, free from national appropriation.²²

In the twenty-first century, however, a fundamental transformation has taken place. Private companies now routinely launch satellites, resupply the International Space Station, and are developing the capacity to carry humans to the Moon, Mars, and beyond. The emergence of what is often called “NewSpace”, commercially driven space ventures backed by private capital, has reframed outer space not merely as a frontier of exploration but as a potential arena of economic activity, resource extraction, and permanent human settlement.²³

This shift raises profound questions for legislators. The central tension can be stated as follows: how should the United States encourage private investment, innovation, and economic and strategic leadership in space whilst honouring the international-law principles that outer space is the “province of all mankind,” not subject to national appropriation, and must be used for the benefit of all countries?²⁴

²¹ Belfer Center for Science and International Affairs. (n.d.). *The new space race*. Harvard Kennedy School. <https://www.belfercenter.org/research-analysis/new-space-race>

²² United Nations Office for Outer Space Affairs. (n.d.). *The Outer Space Treaty*. <https://www.unoosa.org/oosa/en/ourwork/spacelaw/treaties/introouterspacetreaty.html>

²³ Belfer Center for Science and International Affairs. (n.d.). *The new space race*. Harvard Kennedy School. <https://www.belfercenter.org/research-analysis/new-space-race>

²⁴ United Nations Office for Outer Space Affairs. (n.d.). *The Outer Space Treaty*. <https://www.unoosa.org/oosa/en/ourwork/spacelaw/treaties/introouterspacetreaty.html>

Key Flashpoints

The committee should be aware of the following principal areas of contention:

- 1 Space Resource and Asteroid Mining Property Rights:** Can private entities own resources extracted from celestial bodies? How does this interact with the non-appropriation principle?
- 2 Orbital Debris and Space Traffic Management:** As the number of private satellites and objects in orbit proliferates, who is responsible for managing orbital traffic and mitigating collision risks?
- 3 Mission Authorisation and Regulatory Gaps:** Many novel private-sector space activities (in-space servicing, manufacturing, debris removal) lack clear governance under existing U.S. regulation.
- 4 Equity Between Spacefaring and Non-Spacefaring Nations:** Does a national legislative approach to space resources risk creating a “first-come, first-served” regime that disadvantages developing nations?
- 5 Permanent Human Settlement (“Colonisation”):** What legal, ethical, and governance frameworks should apply to the prospect of human communities on celestial bodies?

The U.S. Legislative Context

The United States has been at the forefront of legislative efforts to open outer space to commercial activity.²⁵ Through a series of statutes, from the Commercial Space Launch Act of 1984 to the SPACE Act of 2015 and subsequent bills, Congress has progressively expanded the legal basis for private-sector operations in outer space, including the recognition of property rights in extracted space resources.²⁶ These domestic measures interact, sometimes uneasily, with the international legal framework that governs outer space.²⁷

²⁵ von der Dunk, F. (2015). *The US Space Launch Competitiveness Act of 2015*. Space, Cyber, and Telecommunications Law Program Faculty Publications, University of Nebraska. <https://digitalcommons.unl.edu/spacelaw/98/>

²⁶ Congressional Research Service. (n.d.). *Commercial space launch and reentry regulations: Overview and select issues* (R48582). Congress.gov. <https://www.congress.gov/crs-product/R48582>

²⁷ Hardman, J. (2023). For all mankind? The United States' race to redefine space law. *UCLA Law Review*. <https://uclawreview.org/2023/03/23/united-states-race-to-redefine-space-law/>

03

International Legal Framework

The governance of outer space rests upon a series of multilateral treaties negotiated principally under the auspices of the United Nations Committee on the Peaceful Uses of Outer Space (COPUOS).

These instruments form the backbone of international space law. The following summarises the key instruments and their relevance to the topic of privatisation and commercial colonisation.

The Outer Space Treaty (1967)

Full title: Treaty on Principles Governing the Activities of States in the Exploration and Use of Outer Space, including the Moon and Other Celestial Bodies.²⁸

This is the foundational instrument of international space law. Its key principles include:

- **Non-appropriation:** Outer space, including the Moon and other celestial bodies, is not subject to national appropriation by claim of sovereignty, by means of use or occupation, or by any other means (Article II).
- **Freedom of exploration:** Outer space shall be free for exploration and use by all States (Article I).
- **Peaceful use:** Celestial bodies shall be used exclusively for peaceful purposes (Article IV).

²⁸ United Nations Office for Outer Space Affairs. (n.d.). *Outer Space Treaty*. <https://www.unoosa.org/oosa/en/ourwork/spacelaw/treaties/outerspacetreaty.html>

- **State responsibility (Article VI):** States bear international responsibility for national activities in outer space, including those of non-governmental (private) entities. Private activities require authorisation and continuing supervision by the appropriate State.
- **Liability (Article VII):** A State that launches or procures the launch of an object into outer space is internationally liable for damage caused by that object.

Article II, Outer Space Treaty: *"Outer space, including the Moon and other celestial bodies, is not subject to national appropriation by claim of sovereignty, by means of use or occupation, or by any other means."*

The Rescue Agreement (1968)

The Agreement on the Rescue of Astronauts, the Return of Astronauts and the Return of Objects Launched into Outer Space requires States to render all possible assistance to astronauts in distress and to return space objects found outside the launching State's territory.

The Liability Convention (1972)

The Convention on International Liability for Damage Caused by Space Objects elaborates on Article VII of the Outer Space Treaty. It establishes an absolute liability regime for damage caused on the surface of the Earth and a fault-based regime for damage caused in outer space.²⁹

The Registration Convention (1976)

The Convention on Registration of Objects Launched into Outer Space requires launching States to register space objects with the United Nations, facilitating the identification and tracking of objects in orbit.

The Moon Agreement (1979)

The Agreement Governing the Activities of States on the Moon and Other Celestial Bodies declares that the Moon and its natural resources are the "common heritage of

²⁹ European Space Law. (n.d.). *International*. <https://www.european-space-law.com/International.html>

mankind” and calls for the establishment of an international regime to govern resource exploitation.³⁰ Crucially, few major spacefaring States (including the United States) have ratified this agreement, limiting its practical effect.³¹

The Artemis Accords (2020)

The Artemis Accords are a U.S.-led set of bilateral principles for cooperative civil space exploration. They are not a treaty but rather a political framework that complements the Outer Space Treaty.³² Key features include:

- Affirmation that space resource extraction does not inherently constitute national appropriation.
- Establishment of “safety zones” around operations to avoid harmful interference.
- Commitments to transparency, interoperability, and registration of space objects.

Friction Between U.S. Domestic Law and International Principles

The U.S. domestic statutes recognising private property rights in extracted space resources (most notably the SPACE Act of 2015) represent a deliberate interpretation that the non-appropriation principle applies to sovereignty claims over celestial bodies themselves, but does not preclude ownership of resources once extracted, analogous to fishing rights in the high seas.³³ Critics argue that this interpretation stretches the Outer Space Treaty beyond its intended scope and risks undermining the multilateral framework.³⁴ The Artemis Accords seek to build international consensus around this interpretation, but they remain controversial among some States.

³⁰ Nuclear Threat Initiative. (n.d.). *Moon Agreement*. <https://www.nti.org/education-center/treaties-and-regimes/agreement-governing-activities-states-moon-and-other-celestial-bodies-moon-agreement/>

³¹ Space Legal Issues. (n.d.). *The 1979 Moon Agreement*. <https://www.spacelegalissues.com/the-1979-moon-agreement/>

³² U.S. Department of State. (n.d.). *Artemis Accords*. <https://www.state.gov/bureau-of-oceans-and-international-environmental-and-scientific-affairs/artemis-accords>

³³ Reddie & Grose. (2024, October 9). *Outer space resource acquisition – A legal perspective*. <https://www.reddie.co.uk/2024/10/09/outer-space-resource-acquisition-a-legal-perspective/>

³⁴ Emory International Law Review. (n.d.). *Commercial Space Launch Competitiveness Act of 2015 and the exploitation of resources in outer space*. <https://scholarlycommons.law.emory.edu/cgi/viewcontent.cgi?article=1218&context=eilr>

04

History of the Topic

The Government Monopoly Era (1957–1980s)

The exploration of outer space began as an exclusively state-driven enterprise during the Cold War, with the United States and the Soviet Union competing for dominance beyond Earth's atmosphere. In 1967, the international community adopted the Treaty on Principles Governing the Activities of States in the Exploration and Use of Outer Space (the Outer Space Treaty), which established outer space as “the province of all mankind,” free for exploration and use by all nations, and explicitly banned national appropriation of the Moon or other celestial bodies by sovereignty claims.³⁵ During this period, NASA maintained a monopoly on launching spacecraft and sending humans into space, though it always worked with private aerospace contractors—such as General Dynamics, Boeing, and Lockheed Martin—on design, innovation, and feasibility studies.³⁶ The legal and institutional framework created during this era set the boundaries within which all future privatization efforts would have to operate.

Early Privatization (1984–2000s)

The shift toward commercial involvement in space began in the early 1980s when Space Services Inc. developed the world's first privately funded rocket, the Conestoga 1, which successfully flew in September 1982.³⁷ The approval procedures for that launch led to

³⁵ United Nations Office for Outer Space Affairs. (n.d.). *Treaty on Principles Governing the Activities of States in the Exploration and Use of Outer Space, Including the Moon and Other Celestial Bodies*. United Nations. <https://www.unoosa.org/oosa/en/ourwork/spacelaw/treaties/introouterspacetreaty.html>

³⁶ Dagnino, G., & Orrù, E. (2023). Outsourcing the American space dream: SpaceX and the narrative of privatized space exploration. *Geopolitics*, ahead-of-print. <https://www.diva-portal.org/smash/get/diva2:2048145/FULLTEXT01.pdf>

³⁷ Harrison, T. (2023). The commercial space imperative. Center for Strategic and International Studies. <https://www.csis.org/analysis/commercial-space-imperative>

legislation making it easier for companies to pursue commercial launch activities.³⁸ On January 25, 1984, President Reagan stated in his State of the Union address that the market for space transportation could surpass the nation's capacity to develop it, and that private companies must have access to launch services.³⁹ Later that year, Congress passed the Commercial Space Launch Act of 1984 (P.L. 98-575), which recognized the U.S. private sector's capability to develop commercial launch vehicles and assigned the Department of Transportation the duties of overseeing commercial launches and issuing licenses.⁴⁰ Reagan's policy succeeded in turning space launch over to the commercial world: by 1998, the number of commercial launches outnumbered government launches for the first time.

NASA's Commercial Transition (2000s–2010s)

A paradigm shift occurred in 2006 when NASA initiated the Commercial Orbital Transportation Services (COTS) program, selecting private space companies to develop and demonstrate new capabilities for resupplying the International Space Station (ISS), with funding tied to milestone achievement rather than traditional cost-plus contracts.⁴¹ NASA originally awarded COTS Phase 1 funding to SpaceX and Rocketplane Kistler in 2006; however, Rocketplane Kistler failed to meet private fundraising milestones, and NASA terminated their contract in 2007.⁴² SpaceX went from announcing a new rocket to successfully joining with the ISS in 2012, reducing the initial cost of payload delivery to roughly \$9,000 per pound, comparable to what NASA's Space Shuttle had achieved. In 2010, NASA invested nearly \$50 million in the Commercial Crew Development program (CCDev1) to stimulate private sector efforts in crew transportation, and in 2014 selected

³⁸ Federal Aviation Administration. (n.d.). *Origins of the commercial space industry*. U.S. Department of Transportation. https://www.faa.gov/sites/faa.gov/files/about/history/milestones/Commercial_Space_Industry.pdf

³⁹ U.S. Senate Committee on Commerce, Science, and Transportation. (2015). *U.S. Commercial Space Launch Competitiveness Act* (Senate Report 114-88). U.S. Government Publishing Office. <https://www.govinfo.gov/content/pkg/CRPT-114srpt88/html/CRPT-114srpt88.htm>

⁴⁰ Commercial Space Launch Act of 1984, Pub. L. No. 98-575, 98 Stat. 3055. <https://www.govtrack.us/congress/bills/98/hr3942/text>

⁴¹ Handberg, R. (2015). Launching commercial space: NASA, cargo, and policy innovation. *Space Policy*, 34, 23–31. <https://doi.org/10.1016/j.spacepol.2015.08.001>

⁴² The Breakthrough Institute. (n.d.). Commercial spaceflight. <https://thebreakthrough.org/issues/energy/commercial-spaceflight>

Boeing and SpaceX under the Commercial Crew Transportation Capability (CCtCap) contracts to transport crews to the ISS.⁴³

The Current Commercial Boom and the Colonization Question

Today, the commercial space sector has expanded dramatically, with billions in private investment across more than a hundred companies, massive reductions in government launch costs, and the emergence of space tourism as a viable market.⁴⁴ Fully private crews now fly on commercially owned and operated human space systems for both suborbital and orbital flights.⁴⁵ However, the question of space colonization raises profound legal and ethical challenges. The Artemis Accords, presented in October 2020 by a coalition of nations, aim to operationalize the norms of the Outer Space Treaty for lunar exploration and resource extraction, asserting that the extraction of space resources does not inherently constitute national appropriation under Article II of the Treaty.⁴⁶ Critics warn that this framework represents an attempt to legitimize deviation from the Outer Space Treaty and may not lead to a fair distribution of resources.⁴⁷ For the House of Representatives, the key legislative questions include how to balance encouraging private investment with ensuring compliance with international obligations, protecting public safety, and addressing whether commercial colonization efforts align with the principle that outer space remains the province of all mankind.

⁴³ National Aeronautics and Space Administration. (n.d.). *Commercial Crew Program essentials*. NASA. <https://www.nasa.gov/humans-in-space/commercial-space/commercial-crew-program/commercial-crew-program-essentials/>

⁴⁴ Harrison, T. (2023). The commercial space imperative. Center for Strategic and International Studies. <https://www.csis.org/analysis/commercial-space-imperative>

⁴⁵ National Aeronautics and Space Administration. (n.d.). How NASA's work led to commercial spaceflight revolution. NASA. <https://www.nasa.gov/humans-in-space/commercial-space/how-nasas-work-led-to-commercial-spaceflight-revolution/>

⁴⁶ National Aeronautics and Space Administration. (2020). *The Artemis Accords: Principles for cooperation in the civil exploration and use of the Moon, Mars, comets, and asteroids for peaceful purposes*. <https://www.nasa.gov/artemis-accords/>

⁴⁷ Deplano, R. (2021). The Artemis Accords: Evolution or revolution in international space law? *International and Comparative Law Quarterly*, 72(3), 671–714. <https://doi.org/10.1017/S0020589323000234>

05

Past Actions of the House

The U.S. Commercial Space Launch Competitiveness Act (H.R. 2262, 2015)

Also known as the SPACE Act of 2015 (Spurring Private Aerospace Competitiveness and Entrepreneurship Act), this is one of the most significant pieces of legislation in this area.⁴⁸ The bill passed the House and was signed into law by President Obama. It was described as “one of the most significant modernisations of commercial space policy and regulatory legislation since the original Commercial Space Launch Act was enacted in 1984”.⁴⁹

Crucially, it gave corporations, for the first time, a right to the resources they extract from celestial bodies, providing “legal certainty regarding property rights in asteroid resources”.⁵⁰ The Act also extended liability and insurance protections for spaceflight participants and addressed space traffic management of federal and private assets in outer space.

⁴⁸ U.S. Congress. (2015). *H.R.2262 — U.S. Commercial Space Launch Competitiveness Act, 114th Congress (2015–2016)*. Congress.gov. <https://www.congress.gov/bill/114th-congress/house-bill/2262>

⁴⁹ U.S. House Committee on Science, Space, and Technology. (2015). *H.R. 2262, U.S. Commercial Space Launch Competitiveness Act: What they're saying* [One-pager]. https://science.house.gov/_cache/files/e/0/e05fce77-6f88-4b19-8fba-dcflc81c3d78/20ECF71186C40C11147C915FC5DB563DDA4BAF396C9E9C274CC7A2CDC7414FD5.h.r-2262---what-they-re-saying.pdf

⁵⁰ Virginia Law Review. (n.d.). *Mining for meaning: An examination of the legality of property rights in space resources*. <https://virginialawreview.org/articles/mining-meaning-examination-legality-property-rights-space-resources/>

The American Space Commerce Free Enterprise Act (H.R. 2809, 2017)

Introduced in the 115th Congress by House Science, Space, and Technology Committee Chairman Lamar Smith, this bill was unanimously approved by the Science Committee on 8 June 2017 and subsequently passed the full House unanimously on 24 April 2018.⁵¹

The bill notably declared that “space is not a global commons,” a significant departure from the principles underlying ratified international treaties, and directed the President to “protect the interests of U.S. entities in outer space, including commercial activity, the exploitation of space resources, and ownership rights over space objects and obtained space resources”.⁵²

It expanded the authorities of the Office of Space Commerce within the Department of Commerce to supervise commercial space activity, established a certification process for the private sector to operate objects in outer space, and created a “Private Space Activity Advisory Committee” to advise on U.S. private-sector activities in outer space.⁵³ The bill was framed as declaring that “America is fully ‘open for business’ in space.”⁵⁴

The Space Commercialisation Promotion Act (1996)

Earlier efforts also emerged in the House. The Space Commercialisation Promotion Act of 1996 sought to promote the economic development of outer space through government-created technologies transitioning to the private sector, emphasising the importance of “unleashing the spirit, energy, and work ethic of U.S. entrepreneurialism” to open up the potential of space.⁵⁵

⁵¹ U.S. House Committee on Science, Space, and Technology. (2018, April 24). *House approves American Space Commerce Free Enterprise Act* [Press release]. <https://science.house.gov/2018/4/house-approves-american-space-commerce-free-enterprise-act>

⁵² Tronchetti, F. (2017). The American Space Commerce Free Enterprise Act of 2017: The latest step in the US commercial space legislation. *Space Policy*. <https://www.sciencedirect.com/science/article/abs/pii/S0265964617301261>

⁵³ U.S. Congress. (2018). *Text — H.R.2809 — American Space Commerce Free Enterprise Act, 115th Congress (2017–2018)*. Congress.gov. <https://www.congress.gov/bill/115th-congress/house-bill/2809/text>

⁵⁴ Footnote: U.S. House Committee on Science, Space, and Technology. (2018, April 24). *House approves American Space Commerce Free Enterprise Act* [Press release]. <https://science.house.gov/2018/4/house-approves-american-space-commerce-free-enterprise-act>

⁵⁵ U.S. House Committee on Science. (1996). *H. Rept. 104-801 — Space Commercialization Promotion Act of 1996*. Congress.gov. <https://www.congress.gov/committee-report/104th-congress/house-report/801>

The Commercial Space Act of 2023

On 2 November 2023, Representatives Frank Lucas (R-OK), as House Science Committee chairman, and Brian Babin (R-TX), as Space and Aeronautics Subcommittee chairman, introduced the Commercial Space Act of 2023, which proposed establishing a certification process for private spacecraft and space objects not currently licensed by the U.S. government.⁵⁶

Broader Context

These House actions sit within a wider policy landscape. The 2015 SPACE Act and the 2017 American Space Commerce Free Enterprise Act were particularly notable for their implications under international law, as they effectively challenged the long-standing framework of the 1967 Outer Space Treaty, which established that outer space is “not subject to national appropriation by claim of sovereignty”.⁵⁷

Most recently, President Trump’s August 2025 Executive Order on “Enabling Competition in the Commercial Space Industry” directed the streamlining of commercial licences and permits and called on the Secretary of Commerce to propose a new process for mission authorisations for novel private-sector space activities.⁵⁸

The Belfer Centre has noted that this executive order acknowledges a growing class of commercially provided in-space services, including in-space servicing and assembly, orbital debris removal, in-space resource utilisation, and in-space manufacturing, that lack clear governance under existing U.S. regulation.⁵⁹

⁵⁶ Center for Strategic and International Studies, Aerospace Security Project. (n.d.). *Mission authorization: Decoding the space policy dilemma*. <https://aerospace.csis.org/mission-authorization-decoding-the-space-policy-dilemma/>

⁵⁷ United Nations Office for Outer Space Affairs. (n.d.). *The Outer Space Treaty*. <https://www.unoosa.org/oosa/en/ourwork/spacelaw/treaties/introouterspacetreaty.html>

⁵⁸ The White House. (2025, August 13). *Enabling competition in the commercial space industry* [Presidential action]. <https://www.whitehouse.gov/presidential-actions/2025/08/enabling-competition-in-the-commercial-space-industry/>

⁵⁹ Belfer Center for Science and International Affairs. (2025). *Explainer: Novel space activities in the executive order on enabling competition in the commercial space industry*. Harvard Kennedy School. <https://www.belfercenter.org/research-analysis/explainer-novel-space-activities-executive-order-enabling-competition-commercial>

06

Current Situation

Replacing NASA with Private Companies

The ongoing privatisation of space activities has impacted the public sector, such as NASA and international bodies such as the European Space Agency (ESA), which jointly coordinates the International Space Station (ISS) alongside several other national space agencies.⁶⁰ The aging of the station pushes NASA and the White House to start working on its future successor, but aims to be a cost effective commercial approach to the low-orbit activities related to the ISS.⁶¹ This allows NASA budget cuts with private backing of the project, allowing greater expansion in the future of low-orbit activities.⁶²

NASA has recently shifted its focus to the near future moon landing, projected to happen in 2028.⁶³ The SLS/Orion launcher already has ongoing live tests such as the recent Artemis 2 mission which brought astronauts around the moon to determine landing sites.⁶⁴ This mission brought up debates on whether interplanetary exploration could be given to private entities such as Space X, the leader of the private space sector and its Falcon 9 launcher which is able to land back on Earth for reuse.⁶⁵ Congress has so

⁶⁰ National Aeronautics and Space Administration. (n.d.). *FAQs: The International Space Station transition plan*. NASA. <https://www.nasa.gov/faqs-the-international-space-station-transition-plan/>

⁶¹ U.S. Government Accountability Office. (2025). *Low-Earth orbit: NASA faces impending decisions for commercial transition* (GAO-26-107805). <https://www.gao.gov/products/gao-26-107805>

⁶² National Aeronautics and Space Administration. (n.d.). *Commercial space stations*. NASA. <https://www.nasa.gov/humans-in-space/commercial-space/commercial-space-stations/>

⁶³ National Aeronautics and Space Administration. (n.d.). *Moon to Mars: NASA's Artemis program*. NASA. <https://www.nasa.gov/humans-in-space/artemis/>

⁶⁴ National Aeronautics and Space Administration. (2026, April 1). *NASA's Artemis II mission leaves Earth orbit for flight around Moon* [Press release]. NASA. <https://www.nasa.gov/news-release/nasas-artemis-ii-mission-leaves-earth-orbit-for-flight-around-moon/>

⁶⁵ Roulette, J., & Erwin, S. (2026, April 1). *NASA's moon mission tests aerospace old guard as SpaceX, Blue Origin hover*. Reuters. <https://www.reuters.com/science/nasas-moon-mission-tests-aerospace-old-guard-space-x-blue-origin-hover-2026-04-01/>

far refused proposals to terminate the Artemis program for commercial alternatives replacement and firmly rejected any attempts.⁶⁶

The House does support proposals of future permanent American outposts on the moon as soon as 2030, supported by crewed and cargo missions on regular schedules.⁶⁷ However, this plan would lean on commercial partnerships and supplemental resources backing.⁶⁸

NASA Budget Struggles between Congress and the White House

Since the arrival of Donald Trump in the White House in late 2024, NASA has faced multiple attempts of budget cutting by the 47th presidential administration, which has led to multiple proposals to Congress to allow more power to private companies on space activities.⁶⁹ The latest proposal comes from the FY2026 White House proposal to cut 24% of NASA's budget from \$24.8 billion to \$18.8 billion, the lowest since 2015, also including a 47% cut of its science program, one of the most important ones in terms of space research and progress.⁷⁰ However, the Senate and Congress jointly rejected the proposal, instead settling with the administration to a \$400 million cut from NASA's prior budget.⁷¹

For FY2027, the same scenario is repeated, with Trump proposing a 23% spending cut for 2027.⁷² This proposal is already faced with a lot of criticism, such as Rep. Brian Babin, chairman of the House Committee on Science, Space and Technology called this proposal

⁶⁶ Berger, E. (2025, September). *Congress and Trump may compromise on the SLS rocket by axing its costly upper stage*. Ars Technica. <https://arstechnica.com/space/2025/09/congress-and-trump-may-compromise-on-the-sls-rocket-by-axing-its-costly-upper-stage/>

⁶⁷ *House appropriators advance key NASA funding bill*. (2026, May 13) The Planetary Society. <https://www.planetary.org/articles/house-appropriators-advance-key-nasa-funding-bill>

⁶⁸ Foust, J. (2026). *House committee advances NASA authorization bill*. SpaceNews. <https://spacenews.com/house-committee-advances-nasa-authorization-bill/>

⁶⁹ Foust, J. (2025). *White House budget proposal would phase out SLS and Orion, scale back ISS operations*. SpaceNews. <https://spacenews.com/white-house-budget-proposal-would-phase-out-sls-and-orion-scale-back-iss-operations/>

⁷⁰ Wall, M. (2025, May). *Trump's 2026 budget would slash NASA funding by 24% and its workforce by nearly one-third*. Space.com. <https://www.space.com/space-exploration/trumps-2026-budget-would-slash-nasa-funding-by-24-percent-and-its-workforce-by-nearly-one-third>

⁷¹ American Astronomical Society. (2026, January). *Congress passes fiscal year 2026 spending bills for NSF, NASA, and DOE*. AAS. <https://aas.org/posts/news/2026/01/congress-passes-fiscal-year-2026-spending-bills-nsf-nasa-and-doe>

⁷² Foust, J. (2026, April). *White House again proposes steep NASA budget cuts*. SpaceNews. <https://spacenews.com/white-house-again-proposes-steep-nasa-budget-cuts/>

“dead on arrival”.⁷³ The House has advanced a bill cutting flat the budget to \$24.4 billion, rejecting the White House’s proposal while cutting the Science Mission Directorate by 17%.⁷⁴

Planned bills and loopholes

While the majority of the area regarding space activities has been regulated by laws, some small loopholes remain unaddressed by the U.S. government to this day. For example, activities such as on-orbit servicing, in-space manufacturing or even debris removal do not fall under any regulated activities or any agency supervision.⁷⁵ Although some laws have been or will be passed directly by the White House. Executive Order 14335 from August 2025 enables competition in the commercial space industry, enabling future reforms in major areas such as commercial launch and reentry, spaceport infrastructure, novel space activity authorisation and leadership and accountability, aiming for an increasing commercial launch schedule by 2030.⁷⁶ The administration also signed an executive order in December 2025, “Ensuring American Space Superiority,” aimed at future lunar activities such as returning astronauts by 2028 as well as deploying a lunar outpost and a nuclear reactor on its surface by 2030.⁷⁷

Key takeaways

The House has mostly acted as a counterweight to the white house’s private proposals regarding NASA budget and takeover, overly considered as aggressive proposals. Nevertheless, congress is still considering and building a legal and regulatory framework regarding commercial space activities and private space stations. Branches of the executive government still push for companies such as Space X to be favored based on experience, while congress desires to maintain public space and scientific programs, ensuring NASA’s sovereignty in the future.

⁷³ *House Science Committee members vow to reject NASA budget cuts.* (2026). Aerospace America (AIAA). <https://aerospaceamerica.aiaa.org/house-science-committee-members-vow-to-reject-nasa-budget-cuts/>

⁷⁴ *House appropriators advance key NASA funding bill.* (2026, May 13). The Planetary Society. <https://www.planetary.org/articles/house-appropriators-advance-key-nasa-funding-bill>

⁷⁵ Belfer Center for Science and International Affairs. (2025). *Explainer: Novel space activities in the executive order on enabling competition in the commercial space industry.* Harvard Kennedy School. <https://www.belfercenter.org/research-analysis/explainer-novel-space-activities-executive-order-enabling-competition-commercial>

⁷⁶ The White House. (2025, August 13). *Enabling competition in the commercial space industry* [Presidential action]. <https://www.whitehouse.gov/presidential-actions/2025/08/enabling-competition-in-the-commercial-space-industry/>

⁷⁷ The White House. (2025, December 18). *Ensuring American space superiority* [Presidential action]. <https://www.whitehouse.gov/presidential-actions/2025/12/ensuring-american-space-superiority/>

07

Stakeholder & Bloc Positions

Summary of Republican Perspectives

The Republican position on commercial space is characterized by an aggressive push for deregulation, streamlined licensing, and framing U.S. space dominance as a matter of national security—particularly in response to China’s lunar ambitions. The 2024 Republican Party Platform explicitly calls for creating “a robust Manufacturing Industry in Near Earth Orbit,” sending American astronauts back to the Moon and onward to Mars, and enhancing “partnerships with the rapidly expanding Commercial Space sector.”⁷⁸ The Trump administration issued Executive Order 14335 in August 2025, titled “Enabling Competition in the Commercial Space Industry,” directing federal agencies to “eliminate or expedite” environmental reviews (NEPA) for commercial launch and reentry licenses, reform FAA Part 450 licensing regulations, and establish an individualized “mission authorization” process for novel space activities not covered by existing frameworks.⁷⁹ Republican lawmakers have consistently framed the space race in terms of strategic competition with China. At a September 2025 Senate Commerce Committee hearing entitled “There’s a Bad Moon on the Rise: Why Congress and NASA Must Thwart China in the Space Race,” Chairman Ted Cruz listed maintaining U.S. presence in low Earth orbit, returning humans to the Moon, and preparing for Mars missions as urgent national priorities.⁸⁰ On colonization specifically, the Republican-sponsored House Commercial

⁷⁸ Republican National Committee. (2024). *2024 Republican Party platform*. The American Presidency Project. <https://www.presidency.ucsb.edu/documents/2024-republican-party-platform>

⁷⁹ Executive Order No. 14335, *Enabling Competition in the Commercial Space Industry*, 90 Fed. Reg. (August 13, 2025). <https://www.govinfo.gov/content/pkg/FR-2025-08-19/pdf/2025-15822.pdf>

⁸⁰ Space Foundation. (2025). *U.S. Senate Committee on Commerce, Science & Transportation hearing: “There’s a Bad Moon on the Rise.”* <https://www.spacefoundation.org/reports/u-s-senate-committee-on-commerce-science-transportation-hearing-theres-a-bad-moon-on-the-rise-why-congress-and-nasa-must-thwart-china-in-the-space-race/>

Space Act of 2023 sought to streamline the regulatory environment and give operators broad latitude to operate in space, with critics noting that the bill would “give operators free rein to operate as they see fit in space” and would “prevent any meaningful regulations to protect astronomy and the space environment.”⁸¹

Summary of Democratic Perspectives

Democrats generally support commercial space growth but raise significant concerns about environmental sustainability, debris mitigation, equitable access, and governance of future settlements. The Biden administration maintained support for the Artemis program but adopted the goal of a “light-touch” regulatory framework through the proposed Mission Authorization process coordinated by the Office of Space Commerce.⁸²

Key Democratic concerns center on several issues.

First, orbital debris: with annual satellite launches escalating from 200 in 2013 to over 2,600 in 2023, Democrats have emphasized the need for stronger regulations, fiscal interventions, and multilateral institutions for debris mitigation.⁸³ The FAA introduced new preventative measures in 2023 to reduce the long-term impact of upper-stage launch vehicles on the space environment.⁸⁴ Second, the FAA’s dual mandate: some members of Congress have raised concerns about whether the FAA can simultaneously promote the commercial space industry and regulate it for public safety.⁸⁵ Third, governance of private settlements: Democrats raise fundamental questions about whose laws apply in commercial habitats, whether companies can claim territorial control, and how the principle of outer space as “the province of all mankind” intersects with private colonization ambitions, particularly given that the Outer Space Treaty prohibits national

⁸¹ American Astronomical Society. (2023, November). Legislation on space debris and commercialization. <https://aas.org/posts/advocacy/2023/11/legislation-space-debris-and-commercialization>

⁸² Office of Space Commerce. (2026, March 24). OSC releases updated Mission Authorization proposal. U.S. Department of Commerce. <https://space.commerce.gov/osc-releases-updated-mission-authorization-proposal/>

⁸³ Organisation for Economic Co-operation and Development. (2024, July). Managing space debris to protect our access to the stars. <https://www.oecd.org/en/blogs/2024/07/managing-space-debris-to-protect-our-access-to-the-stars.html>

⁸⁴ Stanford Space Law Society. (2025). Who takes out the trash in space? Stanford Law School. <https://law.stanford.edu/2025/08/22/who-takes-out-the-trash-in-space/>

⁸⁵ Congressional Research Service. (2024). *Regulation of commercial human spaceflight safety: Overview and issues for Congress* (Report No. R48050). <https://www.congress.gov/crs-product/R48050>

appropriation but was drafted before commercial settlements were conceivable.⁸⁶ Fourth, equitable access: international frameworks like the UN's Pact for the Future (2024) identify regulating space traffic, mitigating debris, and ensuring equitable access to space resources as critical for sustainable governance.⁸⁷

External Stakeholders and Industry Voices

Government Agencies

- **NASA** has transitioned from a monopoly operator to an anchor customer, relying on public-private partnerships (COTS, Commercial Crew) to reduce costs while maintaining safety oversight. NASA continues its transition of low Earth orbit to private industry. On colonization, NASA supports the Artemis Accords framework and views commercial capabilities as essential for sustained lunar presence.⁸⁸
- **FAA/AST (Office of Commercial Space Transportation)** licenses and regulates commercial launch and reentry. A record 148 FAA-licensed commercial space operations occurred in FY 2024, up 30% from the prior year, with projections that this may more than double by 2028.⁸⁹ Industry stakeholders have called for doubled funding and expedited hiring authority for FAA/AST, arguing the office is “overwhelmed in executing its core launch and reentry mission.”
- **FCC** manages spectrum allocation for satellite constellations, critical for mega-constellations like Starlink and the emerging competition from China's Guowang constellation.
- **Office of Space Commerce (Department of Commerce)** is developing the proposed “mission authorization” framework for novel activities not covered by existing regulatory

⁸⁶ United Nations Office for Outer Space Affairs. (n.d.). *Treaty on Principles Governing the Activities of States in the Exploration and Use of Outer Space*. <https://www.unoosa.org/oosa/en/ourwork/spacelaw/treaties/introouterspacetreaty.html>

⁸⁷ European Journal of Futures Research. (2025). Sustainable space governance as a key to protect future generations. *Springer*. <https://link.springer.com/article/10.1186/s40309-025-00254-8>

⁸⁸ National Aeronautics and Space Administration. (n.d.). How NASA's work led to commercial spaceflight revolution. <https://www.nasa.gov/humans-in-space/commercial-space/how-nasas-work-led-to-commercial-spaceflight-revolution/>

⁸⁹ Executive Order No. 14335, Enabling Competition in the Commercial Space Industry, 90 Fed. Reg. (August 13, 2025). <https://www.akingump.com/en/insights/alerts/white-house-issues-long-awaited-order-to-revamp-commercial-space-regs>

regimes, including on-orbit servicing, in-space manufacturing, active debris removal, and cislunar or lunar surface operations.⁹⁰

Industry Companies

- **SpaceX** is the world's most active launch services provider. In February 2026, Elon Musk announced SpaceX would prioritize establishing a “self-growing city” on the Moon, achievable in less than 10 years, before resuming Mars colonization work in five to seven years.⁹¹ SpaceX's focus on reusable rockets (Falcon 9, Starship) has dramatically reduced launch costs and enabled the commercial revolution, though critics note a “disconnect between the actual work that SpaceX is doing versus the grandiose way that Musk has talked about future colonization plans.”⁹²
- **Blue Origin** focuses on a vision of millions of people living and working in space. Along with SpaceX, Blue Origin is pivotal in advancing the economic feasibility of deep-space missions and developing heavy-lift capabilities.⁹³
- **Axiom Space** is developing commercial modules for the ISS and plans for a future private space station, representing the transition from government-owned orbital infrastructure to commercial destinations.
- **Rocket Lab** has emerged as a significant commercial launch operator, contributing to the decrease in launch costs and increased access to space.⁹⁴

⁹⁰ Greenberg Traurig, LLP. (2025, October). Executive Order aims to accelerate commercial space development through deregulation. <https://www.gtlaw.com/en/insights/2025/10/executive-order-aims-to-accelerate-commercial-space-development-through-deregulation>

⁹¹ Reuters. (2026, February 9). SpaceX prioritizes lunar 'self-growing city' over Mars project. <https://www.reuters.com/science/musk-says-spacex-prioritise-building-self-growing-city-moon-2026-02-08/>

⁹² The Verge. (2026). Are Elon Musk's Mars plans finally coming back down to Earth? <https://www.theverge.com/science/880672/spacex-elon-musk-moon-mars-ipo-blue-origin>

⁹³ Hussain, A., et al. (2024). Towards sustainable horizons: A comprehensive blueprint for Mars colonization. *Heliyon*, 10(4), e25302. <https://pmc.ncbi.nlm.nih.gov/articles/PMC10884476/>

⁹⁴ Stanford Space Law Society. (2025). Who takes out the trash in space? Stanford Law School. <https://law.stanford.edu/2025/08/22/who-takes-out-the-trash-in-space/>

08

Questions a Resolution Must Answer

- 1 1. *How can the United States reconcile the recognition of private property rights in extracted space resources with the non-appropriation principle enshrined in Article II of the Outer Space Treaty?*
- 2 2. *What regulatory body or bodies should be responsible for authorising novel private-sector space activities that do not fall within existing licensing frameworks (e.g., in-space manufacturing, debris removal, resource utilisation)?*
- 3 3. *How should orbital debris and space traffic be managed as the number of commercial satellites and objects in orbit continues to grow? Should this be a national or international responsibility?*
- 4 4. *How can the United States ensure that the commercialisation of outer space delivers equitable benefits to all nations, including non-spacefaring States, and avoids a "first-come, first-served" regime?*
- 5 5. *What role should international cooperation and multilateral treaty-making play relative to national legislation in governing commercial space activities?*
- 6 6. *How should Congress balance the imperative of encouraging private innovation and investment in space with the need to protect the space environment and celestial bodies from irreversible harm?*
- 7 7. *Should the United States seek to amend or supplement existing international space-law instruments to provide clearer rules for commercial activities, or is a unilateral/plurilateral approach (such as the Artemis Accords) preferable?*
- 8 8. *What governance frameworks are appropriate for permanent human settlement on celestial bodies, and how should sovereignty, jurisdiction, and civil rights be addressed in such settlements?*
- 9 9. *How should liability for damage caused by commercial space activities be apportioned, particularly in an era of on-orbit servicing, active debris removal, and mega-constellations?*
- 10 10. *To what extent does describing the commercialisation of outer space as "colonisation" raise ethical concerns, and how should these inform legislative action?*

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